

		Defendant has attached the proposed pleading to the moving papers. However, defendant must electronically file the cross-complaint separately with the clerk's office so that there is a proper record of the pleading. Defendant shall separately file the cross-complaint within three days. Defendant shall give notice of this ruling.
58.	Ray v. General Motors, LLC 2023- 01318172	Plaintiff Adam Ray's motion for attorney fees and costs is GRANTED. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].) Plaintiff is awarded attorney fees in the amount of \$13,793.00, which amount the court finds was reasonably and necessarily incurred. The court has reduced the fees sought based on excessive fees claimed for a motion to compel, and based on hours solely related to the fraud claim (which is not within the statutory mandate under which Plaintiff is awarded fees). The court finds that the attorney's hourly rates appear proper. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate "is that prevailing in the community for similar work"]; <i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 700 ["determination of the 'market rate' is generally based on the rates prevalent in the community where the court is located"]; <i>Nishiki v. Danko Meredith, APC</i> (2018) 25 Cal.App.5th 883, 899 ["a trial court has its own expertise in the value of legal services performed in a case ... and it may rely on its own familiarity with the local legal market in setting the hourly rate"].) Plaintiff's request for a multiplier is DENIED. This appears to be a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. (<i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 248, citing <i>Press v. Lucky Stores, Inc.</i> (1983) 34 Cal.3d 311, 322, fn. 12 [multiplier factors].) Plaintiff's request for \$1,844.12 in costs is also GRANTED. Plaintiff's evidentiary objections to Defendant's declaration are OVERRULED. The court orders this settled case dismissed, without prejudice with the court retaining jurisdiction pursuant to CCP § 664.4.

		Moving plaintiff shall give notice of this ruling.
59.	Maranwe v. Saunders & Associates, APC 2025-01499956	The demurrer and motion to strike by defendants Saunders & Associates, APC, Vasili Papas, Gary Saunders, and Morena Elias are CONTINUED to July 20, 2026 at 2:00 p.m. in Dept. C28. Plaintiff's motion for sanctions is also continued to that same date. Defendants' demurrer and motion to strike were originally heard on 3-16-26, and continued on that date to allow moving defendants to file declarations compliant with Code Civ. Proc., §§ 430.41 and 435.5, with plaintiff ordered to give notice. (Defendants did not appear on 3-16-26.) (ROA 57 [3-16-26 minute order].) However, there is no record that plaintiff gave notice as ordered. And defendants failed to file the ordered declarations. Further, there is no proof of service of plaintiff's opposition to the demurrer and motion to strike. (ROA 52.) There is also no proof of service of plaintiff's motion for sanctions. (ROA 46, 48.) There is no responsive pleading by defendants to the opposition to the demurrer and motion to strike, or to the motion for sanctions. (See <i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 698 [response on merits can waive service defect].) Accordingly, all three motions are continued. As to the demurrer and motion to strike, the Court orders the parties to engage in meet and confer efforts in compliance with Code Civ. Proc., §§ 430.41 and 435.5 within 10 days of today's date, and orders counsel for moving defendants to file a supplemental declaration demonstrating such compliance at least five court days prior to the continued hearing. Plaintiff is ordered to serve his opposition to the demurrer and motion to strike (ROA 52) on defendant within five court days of today, and to file proof of service of same at least five court days prior to the continued hearing date. Any reply may be filed and served per Code Civ. Proc., § 1005, subd. (b). As to plaintiff's motion for sanctions, plaintiff is ordered to serve the motion (ROA 46, 48) on defendant within five court days of today's date, and to file proof of service of same at least five court days prior to the continued hearing date. Any opposition and/or reply may be filed and served per Code Civ. Proc., § 1005, subd. (b). Plaintiff is also cautioned to file proper proofs of service in the future.